



AGENDA

ENHANCED ENTERPRISE ZONE BOARD
OF THE CITY OF ST. LOUIS

REGULAR MEETING- REGULAR SESSION VIA ZOOM MEETING AND VIA TELEPHONE Tuesday, June 23, 2026 – 3:00pm

This meeting will be conducted electronically.

In order to ensure all Commissioners and the public are able to connect successfully, we recommend that you call or join via Zoom starting at 2:45pm to allow time to troubleshoot any connection issues. The host will open the phone lines and initiate the Zoom meeting at that time. Should you have a problem accessing the meeting, please call (314) 657-3749 for assistance.

The public will be able to access the meeting in two ways:

1. Please click the link below to join the webinar:
<https://us02web.zoom.us/j/83593997289?pwd=ZmF5bXRUOVNQRFZS2ZpYlo2VjJ6UT09>
Passcode: 878470
Or One tap mobile :
+13126266799,,83593997289# US (Chicago) +16469313860,,83593997289# US
2. Or Telephone:
Dial(for higher quality, dial a number based on your current location):
US: +1 312 626 6799 or +1 646 931 3860 or +1 929 205 6099 or +1 301 715 8592
or +1 253 215 8782 or +1 346 248 7799
Webinar ID: 835 9399 7289

People who need accommodations relating to accessibility should contact Myisa Sykes at sykesm@stlouis-mo.gov or by phone at (314) 657-3749 or (314) 589-6000 (TTY). Prior notice of two business days is recommended for accommodation requests.

1. **CALL TO ORDER**
2. **APPROVAL OF MINUTES** – April 28, 2026

3. **2500 BALDWIN ST. AND 2524-2610 GLASGOW AVE. REDEVELOPMENT AREA**
(Alderman Rasheen Aldridge/14th Ward)

RESOLUTION NO. 26-EEZB-82 - RESOLUTION RECOMMENDING TAX ABATEMENT FOR SENSIENT COLORS LLC AT 2500 BALDWIN ST. AND 2524-2610 GLASGOW AVE. IN THE ENHANCED ENTERPRISE ZONE AND APPROVING REDEVELOPMENT AGREEMENT (350-341) (Zachary Wilson)

4. **8390 HALL ST. REDEVELOPMENT AREA**
(Alderdwoman Pamela Boyd/13th St.)

RESOLUTION NO. 26-EEZB-83 - RESOLUTION RECOMMENDING TAX ABATEMENT FOR AAA COOPER TRANSPORTATION, INC. AT 8390 HALL ST. IN THE ENHANCED ENTERPRISE ZONE AND APPROVING REDEVELOPMENT AGREEMENT (350-342) (Zachary Wilson)

5. **GENERAL**

RESOLUTION NO. 26-EEZB-84 – RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION AGREEMENT BETWEEN THE ENHANCED ENTERPRISE ZONE BOARD OF THE CITY OF ST. LOUIS AND THE ST. LOUIS DEVELOPMENT CORPORATION (David Meyer)

6. **OPEN AGENDA**

7. **ROLL CALL VOTE** in open session to hold a closed meeting pursuant to the following:

- A) Proceedings involving legal actions, causes of actions or litigation or confidential or privileged communications with attorneys or auditors as provided by Section 610.021 (1) RSMo. and/or Section 610.021 (17) RSMo.
- B) Proceedings to discuss matters involving leasing, purchase or sale of real estate as provided by Section 610.021 (2) RSMo.
- C) Proceedings to regarding sealed bids and proposals and related documents or documents related to a negotiated contract as provided by Section 610.021 (12) RSMo.

8. **NEXT BOARD MEETING – SCHEDULED FOR JULY 28, 2026**

9. **ADJOURNMENT**



MINUTES

ENHANCED ENTERPRISE ZONE BOARD
OF THE CITY OF ST. LOUIS

ANNUAL MEETING - REGULAR SESSION
VIA ZOOM AND VIA TELEPHONE
Tuesday, April 28, 2026 – 3:00pm

BOARD MEMBERS PRESENT:	Lori Koenig (Chair) Matt McBride Sean Spencer Lindsey Evans Tim Snoke (Taxing District) One Vacancy (School Board)
BOARD MEMBERS ABSENT:	Kennard Jones
STAFF PRESENT:	Zachary Wilson, Rob Orr, Linda Criss, Paul Weatherford, Madeleine Swanstrom, Chris Maguire, Sara Wessels, Salise Cobb, Marla Roach, Stephen Davis, Lisa Otko
COUNSEL PRESENT:	David Meyer, Olivia Findley Mark Spkerman – Gilmore & Bell (Special Counsel to SLDC)
GUESTS PRESENT:	Agata Ruka – Sensient Edmonn Maul – Sensient Leroy Chuck Watson – Sensient Steph Kukuljan – STLDP Gerry Connolly, Charles Davis, Dylan Sabisch, Sean Fauss

CALL TO ORDER

After roll call, a quorum being present, Chair Koenig called the meeting to order at 3:00pm.

APPROVAL OF MINUTES

Chair Koenig called for a motion to approve the minutes of the May 13, 2025, meeting. A motion to approve the minutes was made by Commissioner McBride and seconded by Commissioner Spencer. Roll was called, and the motion passed with five (5) Commissioners present (McBride, , Spencer, Snoke, Koenig, Evans) voting aye.

RESOLUTION NO. 26-EEZB-80 - APPROVING AND AUTHORIZING THE ELECTION OF OFFICERS OF ENHANCED ENTERPRISE ZONE BOARD OF THE CITY OF ST. LOUIS

David Meyer, Legal Counsel for SLDC, presented the resolution to the Board and listed the proposed slate of officers. Chair Koenig then called for a motion to approve the proposed slate: *Lori Koenig*, Chair, *Matt McBride*, Vice Chair, *Kennard Jones*, Treasurer, *Zachary Wilson*, Assistant Secretary and *Linda Criss*, Assistant Secretary. Motion was made by Commissioner McBride, seconded by Commissioner Snoke. Roll was called, and the motion passed with five (5) Commissioners present (Koenig, McBride, Spencer, Evans, Snoke) voting aye.

RESOLUTION NO. 26-EEZB-81 - RESOLUTION APPOINTING STEPHEN WESTBROOKS AS EXECUTIVE DIRECTOR, SECRETARY, AND SIGNATORY FOR THE ENHANCED ENTERPRISE ZONE BOARD OF THE CITY OF ST. LOUIS

David Meyer, Legal Counsel, presented the Resolution to the Board. After discussion, Chair Koenig called for a motion to appoint *Stephen Westbrook* as Executive Director, Secretary, and Signatory for the Enhanced Enterprise Zone Board of the City of St. Louis. Motion was made by Commissioner Snoke and seconded by Commissioner Spencer. Roll was called, and the motion passed with five (5) Commissioners present (McBride, Spencer, Snoke, Koenig, Evans) voting aye.

RESOLUTION NO. 26-EEZB-82 - RESOLUTION RECOMMENDING TAX ABATEMENT FOR SENSIENT COLORS LLC AT 2500 BALDWIN ST. AND 2524-2610 GLASGOW AVE. IN THE ENHANCED ENTERPRISE ZONE AND APPROVING REDEVELOPMENT AGREEMENT (350-341)

Zach Wilson, SLDC, presented the resolution to the Board. Leroy Chuck Watson and Agata Ruka, both of Sensient, provided additional details regarding the project. After discussion, Chair Koenig called for a motion to approve Resolution No. 26-EEZB-82. Motion was made by Commissioner McBride and seconded by Commissioner Spencer with request for previous roll. With there being no objection, the motion passed with five (5) Commissioners present (McBride, Spencer, Snoke, Koenig, Evans) voting aye.

OPEN AGENDA

No items for open agenda.

NEXT MEETING

The next EEZ Board meeting is scheduled for May 26, 2026.

ADJOURNMENT

With no further business, a motion to adjourn was made by Commissioner McBride, seconded by Commissioner Snoke and the meeting was adjourned at 3:24pm.

Lori Koenig, Chair

Stephen Westbrook, Executive Director

Corrected June 23, 2026
RESOLUTION NO. 26-EEZB-82
PRESENTED TO THE BOARD APRIL 28, 2026

TO: ENHANCED ENTERPRISE ZONE BOARD OF COMMISSIONERS
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: ZACHARY WILSON

RE: RESOLUTION RECOMMENDING TAX ABATEMENT FOR SENSIENT COLORS LLC
AT 2500 BALDWIN ST. AND 2524-2610 GLASGOW AVE. IN THE ENHANCED
ENTERPRISE ZONE AND APPROVING REDEVELOPMENT AGREEMENT (350-341)
(**ALDERMAN RASHEEN ALDRIDGE/14TH WARD**)

EXECUTIVE SUMMARY:

This Resolution recommends the Board of Aldermen approve by resolution full ad valorem tax abatement for ten (10) years based on 90% of the assessed value of the incremental improvements for a revenue-producing enterprise located in the Enhanced Enterprise Zone.

BACKGROUND:

Condition of Property:	Fair
Property Owner:	Sensient Colors LLC
Prospective Redeveloper:	Sensient Colors LLC

The City Ordinance governing the granting of tax abatement in the St. Louis Enhanced Enterprise Zone provides for tax abatement to revenue-producing enterprises upon the recommendation of the Enhanced Enterprise Zone Board of the City of St. Louis and a resolution by the Board of Aldermen. Sensient Colors LLC is looking to expand its production capacity by building a new facility at their Jefferson Avenue campus. The expansion will allow Sensient Color LLC to transition their facility from synthetic to natural color production to be used as natural food colorants and additives, cosmetic-grade pigments for personal care products, pharmaceutical colorants and excipients, and specialty color solutions for industrial applications. The expansion will result in Sensient Color LLC creating approximately 84 new jobs at an average annual wage of \$83,928. Anticipated construction cost will be \$134,000,000.

REQUESTED ACTION:

Recommend to the St. Louis Board of Aldermen, the property at 2500 Baldwin St., 2524 Glasgow Ave., 2600 Glasgow Ave., 2606 Glasgow Ave., 2608 Glasgow Ave., and 2610 Glasgow Ave. be granted a ten-year ad valorem tax abatement based on 90% assessed value of the incremental improvements.

NOW, THEREFORE, be it resolved by the Board of Commissioners of the Enhanced Enterprise Zone Board of the City of St. Louis as follows:

1. The Enhanced Enterprise Zone Board of the City of St. Louis hereby recommends to the Board of Aldermen of the City of St. Louis that the ad valorem taxes on the property at 2500 Baldwin St. and 2524-2610 Glasgow Ave., owned by Sensient Colors LLC be abated for ten (10) years based on 90% of the assessed value of the incremental improvements.
2. The Executive Director of the Enhanced Enterprise Zone is hereby authorized and directed to negotiate and execute a Development Agreement with Sensient Colors LLC with provision for a tax abatement for ten (10) years based on 90% of the assessed value of the incremental improvements.
3. The Executive Director of the St. Louis Enhanced Enterprise Zone Board is hereby authorized to and directed to take such other actions as may be necessary and proper to carry out the intent of this Resolution.

ADOPTED THIS 28th day of April 2026

(SEAL)

ENHANCED ENTERPRISE ZONE BOARD
OF THE CITY OF ST. LOUIS

By: _____

Title: Assistant Secretary

ATTEST:

Assistant Secretary

**RESOLUTION NO. 26-EEZB-83
PRESENTED TO THE BOARD JUNE 23, 2026**

TO: MEMBERS OF THE ENHANCED ENTERPRISE ZONE BOARD
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: ZACHARY WILSON

RE: RESOLUTION RECOMMENDING TAX ABATEMENT FOR AAA COOPER
TRANSPORTATION, INC. AT 8390 HALL ST. IN THE ENHANCED ENTERPRISE
ZONE AND APPROVING REDEVELOPMENT AGREEMENT (350-342)
(ALDERWOMAN PAMELA BOYD/13TH WARD)

EXECUTIVE SUMMARY:

This Resolution recommends the Board of Aldermen approve by resolution full ad valorem tax abatement for ten (10) years based on 90% of the assessed value of the incremental improvements for a revenue-producing enterprise located in the Enhanced Enterprise Zone.

BACKGROUND:

Condition of Property: Fair
Property Owner: Con-Way Central Express, Inc
Prospective Redeveloper: AAA Cooper Transportation, Inc.

The City Ordinance governing the granting of tax abatement in the St. Louis Enhanced Enterprise Zone provides for tax abatement to revenue-producing enterprises upon the recommendation of the Enhanced Enterprise Zone Board of the City of St. Louis and a resolution by the Board of Aldermen. AAA Cooper Transportation, Inc. is looking to relocate and expand its transportation and logistics business through the acquisition of 8390 Hall Street and subsequent improvement of existing structures. This relocation and expansion will allow AAA Cooper Transportation, Inc. to grow its capacity, leading to the creation of 125 new jobs with an average salary of approximately \$75,965. Total project cost is \$17,000,000 and the anticipated construction cost will be \$2,000,000.

REQUESTED ACTION:

Recommend to the St. Louis Board of Aldermen, the property at 8390 Hall Street be granted a ten-year ad valorem tax abatement based on 90% assessed value of the incremental improvements.

NOW, THEREFORE, be it resolved by the Board of Commissioners of the Enhanced Enterprise Zone Board of the City of St. Louis as follows:

1. The Enhanced Enterprise Zone Board of the City of St. Louis hereby recommends to the Board of Aldermen of the City of St. Louis that the ad valorem taxes on the property at 8390 Hall Street, owned by AAA Cooper Transportation, Inc. be abated for ten (10) years based on 90% of the assessed value of the incremental improvements.

2. The Executive Director of the Enhanced Enterprise Zone is hereby authorized and directed to negotiate and execute a Development Agreement with AAA Cooper Transportation, Inc. with provision for a tax abatement for ten (10) years based on 90% of the assessed value of the incremental improvements.
3. The Executive Director of the St. Louis Enhanced Enterprise Zone Board is hereby authorized to and directed to take such other actions as may be necessary and proper to carry out the intent of this Resolution.

ADOPTED THIS 23rd day of June, 2026

(SEAL)

ENHANCED ENTERPRISE ZONE BOARD
OF THE CITY OF ST. LOUIS

By: _____

Title: Assistant Secretary

ATTEST:

Assistant Secretary

**RESOLUTION NO. 26-EEZB-84
PRESENTED TO THE BOARD JUNE 23, 2026**

TO: ENHANCED ENTERPRISE ZONE BOARD
STEPHEN WESTBROOKS, EXECUTIVE DIRECTOR

FROM: DAVID MEYER, ASSOCIATE CITY COUNSELOR

RE: RESOLUTION AUTHORIZING AND APPROVING AN ADMINISTRATION
AGREEMENT BETWEEN THE ENHANCED ENTERPRISE ZONE BOARD OF THE
CITY OF ST. LOUIS AND THE ST. LOUIS DEVELOPMENT CORPORATION

EXECUTIVE SUMMARY:

This Resolution authorizes and approves an Administration Agreement between the St. Louis Development Corporation (SLDC) and the Enhanced Enterprise Zone (EEZ) Board.

BACKGROUND:

St. Louis Development Corporation acts as the administrative arm of the EEZ Board. SLDC provides the EEZ Board and each of the other agencies and authorities with staff, professional services and overhead for the administration of the programs for each. The Agreement to be approved sets out this relationship with the EEZ Board. The same Agreement is executed with each of the SLDC affiliated agencies and authorities.

The Agreement will be for a period of five (5) years and will automatically renew from year to year on the expiration of each successive renewal term until June 30, 2031.

A draft agreement is attached to this resolution.

REQUESTED ACTION:

Approval of this Resolution.

NOW, THEREFORE, be it resolved by the Board of Commissioners of the Enhanced Enterprise Zone Board of the City of St. Louis that:

1. The Enhanced Enterprise Zone Board of the City of St. Louis hereby approves this Resolution and authorizes an Administrative Agreement between St. Louis Development Corporation (SLDC) and the EEZ Board, in substantially the form submitted to the Board, with such changes as the Executive Director may approve that are consistent with the form as submitted to the Board. The signature of the Chair, Vice Chair or the Executive Director or his designee on the Agreement, whether manual or facsimile, shall be conclusive evidence of approval by the Board.
2. The Executive Director, his/her designee, and the appropriate officers, agents and employees of SLDC are hereby authorized to take all actions necessary to effectuate the intent of this Resolution.
3. This Resolution shall take effect and be in full force immediately after its passage and approval by the governing body of the EEZ Board.

ADOPTED this 23rd day of June 2026.

ENHANCED ENTERPRISE ZONE BOARD
OF THE CITY OF ST. LOUIS

By: _____

Title: Assistant Secretary

(SEAL)

ATTEST:

Assistant Secretary

DRAFT
ADMINISTRATION AGREEMENT

THIS AGREEMENT, made and entered into this 1st day of July, 2026, by and between ST. LOUIS DEVELOPMENT CORPORATION, a Missouri not-for-profit corporation (“SLDC”), and the ENHANCED ENTERPRISE ZONE BOARD of the City of St. Louis, a body organized pursuant to the laws of the State of Missouri (the “EEZ Board”);

RECITALS

WHEREAS, the EEZ Board is organized pursuant to Section 135.950 through 135.973 of the Revised Statutes of Missouri (“EEZ Law”) for the purpose of furthering the economic development of the City of St. Louis through the promotion, assistance and development of business concerns within the City of St. Louis, Missouri; and

WHEREAS, the EEZ Board in furtherance of the foregoing purposes has engaged in certain activities permitted under the EEZ Law, including, advising the Board of Aldermen and carrying out other duties designated in Ordinances 67350 and 67494; and

WHEREAS, the EEZ Board is empowered to make and execute contracts necessary or appropriate for the exercise of its powers and purposes; and

WHEREAS, SLDC is organized pursuant to Chapter 355, Missouri Revised Statutes, for the purposes of advancing the social welfare, health and economic interests of the City of St. Louis, Missouri, and its residents; and

WHEREAS, SLDC is empowered to contract and cooperate with public corporations, political subdivisions or any agency or department thereof in furtherance of its corporate purposes, and in pursuance thereof, shall provide office facilities, staff operating support and professional services to the EEZ Board in accordance with the terms and conditions of this Agreement; and

WHEREAS, the EEZ Board is desirous of securing such staff, operating support, facilities and professional services from SLDC for the operation of activities including fostering economic development in the City of St. Louis;

NOW, THEREFORE, for and in consideration of the premises and the mutual covenants hereinafter contained, the parties hereto covenant and agree and follow:

ARTICLE I

AGREEMENT TERM

1.1 **Initial Term.** This Agreement shall commence upon execution by the parties hereto for twelve (12) months, until June 30, 2027 (the “Initial Term”).

1.2 **Renewal Terms.** This Agreement shall be automatically renewed from year-to-year for four (4) additional one (1) year terms subject to annual appropriations and funding by the EEZ Board, commencing on the date of expiration of the Initial Term, and each successive renewal term, and ending not later than June 30, 2031, unless terminated by either party in accordance with Section 1.3 below.

1.3 Termination. This Agreement may be terminated during the Initial Term and any renewal term, without cause, by either party by the provision of ninety (90) days prior written notice to the other party. Said notice may be waived by the mutual written consent of the parties hereto. Further, said notice is inapplicable if the termination is for a failure of appropriation and funding as set forth in Section 1.2 above.

ARTICLE II

SCOPE OF SERVICES

2.1 Staff. SLDC shall provide staff for the administration, operation and implementation of the programs and functions of the EEZ Board. SLDC shall, upon request by the EEZ Board, perform all duties the EEZ Board is responsible for under the EEZ Law. SLDC shall have no authority, without the prior written consent of the EEZ Board, to sell or encumber any assets of the EEZ Board or to borrow any funds in the name of the EEZ Board. At the request of the EEZ Board, SLDC shall recommend persons to the EEZ Board to serve as elected officers of the EEZ Board, such as corporate secretary or assistant corporate secretary, consistent with the bylaws of the LCRAHC, without additional compensation to such individuals. All staff shall be employed by SLDC and SLDC shall provide appropriate fringe benefits to the staff.

2.2 Administrative Services. SLDC shall provide managerial, administrative, secretarial, word processing and bookkeeping services to the EEZ Board as required for the regular conduct of the business of the EEZ Board.

2.3 Professional Services. SLDC shall furnish financial management, accounting, legal services and other professional services to the EEZ Board.

2.4 Reports. SLDC shall provide reports needed for the EEZ Board's decision-making processes or as otherwise required by law and all reports shall be presented by SLDC to the EEZ Board and to any other party as otherwise required by law in a timely manner.

2.5 Office Facilities. SLDC shall provide offices and record storage to the EEZ Board. The EEZ Board shall make available to SLDC all of the EEZ Board files and records, present furnishings, file cabinets and equipment. SLDC shall return all such EEZ Board files, records, furnishings, file cabinets and equipment upon termination of this Agreement, provided SLDC, acting in its sole discretion, shall have the right to dispose of any furnishings, file cabinets and equipment it deems obsolete, worn or unneeded at any time during the term of this Agreement and provided that SLDC may retain copies of any EEZ Board file or record. SLDC may, upon notice to the EEZ Board, dispose of any files and records of the EEZ Board delivered to SLDC under this Agreement; provided, however, any such disposition shall be consistent with any record retention requirements applicable to the EEZ Board imposed by federal, state or local laws, regulation, ordinance or order or any contract of the EEZ Board.

ARTICLE III

COMPENSATION

3.1 Consideration. The consideration supporting this Agreement shall be the mutual obligations contained herein and shall not include monetary consideration, except as otherwise provided herein.

3.2 Fees. Any fees generated through the activities of the EEZ Board shall be deposited in an account of the Land Clearance for Redevelopment Authority of the City of St. Louis ("LCRA") and be used to help offset SLDC administrative costs. A general guide for fees charged will be the fee structure of LCRA.

3.3 Consent. The EEZ Board agrees not to expend or commit any of its funds during the term of this Agreement without prior notice to SLDC in order to ensure that SLDC can provide appropriate staff to implement the expenditure or commitment of funds and that the costs of such staff is covered.

ARTICLE IV

INDEMNIFICATION

4.1 Indemnification. SLDC agrees to indemnify and hold the EEZ Board and its officers and directors harmless from any and all loss, damage, liability, claim, demand, cause of action and expense (including reasonable attorneys' fees) relating to any actual or alleged injury to or death of any person, any actual or alleged loss or damage to property, or any other actual or alleged loss or damage suffered by any third party arising from any wrongful, willful or intentional acts of SLDC or its employees to the extent such loss, damage, liability or expense exceeds the limits of any liability insurance; provided, however, nothing contained herein shall require SLDC to indemnify the EEZ Board, its officers and directors for any claim or liability resulting from the wrongful, willful or intentional acts of the EEZ Board, its officers and directors.

4.2 Insurance. SLDC shall provide insurance for safeguarding the assets of EEZ Board based on cost efficiency. SLDC shall also provide general liability and directors and officers liability for EEZ Board.

ARTICLE V

MISCELLANEOUS PROVISIONS

5.1 Default. If either party fails to perform any of its obligations hereunder (the "defaulting party"), the other party may, after ten (10) days' written notice and demand, perform or cause to be performed, the defaulting party's obligations hereunder and charge the reasonable cost to the same.

5.2 Modifications. All modifications to this Agreement shall be in writing and signed by the parties hereto.

5.3 Assignment. Neither party's rights or obligations hereunder shall be assigned without the prior written consent of the other party.

5.4 Non-discrimination. In accordance with applicable federal, state and local laws, regulations, ordinances and orders, SLDC shall not discriminate against employees or applicants for employment on the basis of race, creed, color, sex, sexual orientation, national origin, or physical disability.

5.5 Waivers. The waiver, by either party, of any breach under this Agreement shall in no way constitute a waiver of any subsequent breach of any term or condition hereof.

5.6 Notices. All notices and communications hereunder shall be in writing and shall be deemed given, made or communicated if either delivered in person or sent by first class United States certified mail and addressed to:

If to SLDC: St. Louis Development Corporation
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
Attention: Executive Director

If to LCRA: Enhanced Enterprise Zone Board of the City of St. Louis
1520 Market Street, Suite 2000
St. Louis, Missouri 63103
With a copy to Chairman (at his/her personal address).

5.7 Non-Exclusive Agreement. The parties hereto agree and understand that this Agreement shall be non-exclusive, and that SLDC intends to contract on a similar basis with other entities, including, but not limited to: the Land Clearance for Redevelopment Authority of the City of St. Louis, the Planned Industrial Expansion Authority of the City of St. Louis, the Port Authority of the City of St. Louis, the Land Reutilization Authority of the City of St. Louis, Missouri, and the Industrial Development Authority of the City of St. Louis.

5.8 Access to Books and Records. The fiscal and programmatic records of SLDC shall be available upon request of the EEZ Board. Books and records shall be retained for a minimum of five (5) years and in accordance with the Missouri Revised Statutes.

5.9 Independent Contractors; No Alter-ego. Except as specifically provided in Section 2.4 above, nothing contained in this Agreement is intended to nor shall be construed to create any partnership, joint venture, alter-ego, or other relation of or between the parties, except that of independent contracting entities. SLDC and EEZ Board mutually agree that each shall be considered for all intents and purposes to be the independent contractor of the other, and neither shall be considered, nor shall the officers, employees or agents of each be considered to be the employees or agents of the other, except as (i) agents and independent contractors for the limited purpose of performing acts as authorized or required under this Agreement, and (ii) certain officers and employees of SLDC may be duly elected as officers of the EEZ Board.

5.10 Statutory Powers. All the powers of the EEZ Board shall be and remain vested in its board pursuant to the EEZ Law, Missouri Revised Statutes, and the EEZ Board shall retain and may exercise all powers necessary or appropriate to carry out and effectuate its purposes under the EEZ Law.

5.11 Invalid Provisions. In the event any covenant, condition or provision herein contained is held to be invalid by a court of competent jurisdiction, the invalidity of any such

covenant, condition or provision shall in no way affect any other covenant, condition or provision herein contained, provided the invalidity of any such covenant, condition or provision does not materially prejudice either SLDC or EEZ Board in its respective rights and obligations contained in the valid covenants, conditions and provisions of this Agreement.

5.12 Entire Agreement. This Agreement contains the entire agreement of the parties hereto and supersedes all prior agreements, representations and understandings, whether written or otherwise, between the parties relating to the subject matter hereof.

5.13 Additional Documents. The EEZ Board agrees to deliver to SLDC such other and further agreements, consents, documents or instruments of conveyance, assignment or transfer and to do such other things and to take such other actions, supplemental or confirmatory, as may be required by SLDC for the purpose of or in connection with the consummation or evidencing of the contractual relationship contemplated hereunder.

5.14 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Missouri and the City of St. Louis.

Signature Page Follows

IN WITNESS WHEREOF, the parties hereto have executed this Administration Agreement as of the day and year first above written.

ST. LOUIS DEVELOPMENT CORPORATION

(SEAL)

By: _____
Executive Director

ATTEST:

**ENHANCED ENTERPRISE ZONE BOARD OF
THE CITY OF ST. LOUIS**

(SEAL)

By: _____
Chairman

ATTEST:
